

**SUBSTITUTE FOR
HOUSE BILL NO. 5644**

A bill to amend 1949 PA 300, entitled
"Michigan vehicle code,"
by amending sections 19a, 675, 803d, and 803h (MCL 257.19a,
257.675, 257.803d, and 257.803h), section 19a as amended by 2002 PA
618, section 675 as amended by 2018 PA 179, and sections 803d and
803h as amended by 2018 PA 62.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 19a. "Disabled person" or "person with disabilities"
2 means ~~a person~~**an individual** who is determined by a physician, a
3 physician assistant, **a certified nurse practitioner, a physical**
4 **therapist, an occupational therapist,** or an optometrist as
5 specifically provided in this section licensed to practice in this
6 state to have 1 or more of the following physical characteristics:



1 (a) Blindness. ~~as determined by an optometrist, a physician,~~
 2 ~~or a physician assistant.~~

3 (b) Inability to walk more than 200 feet without having to
 4 stop and rest.

5 (c) Inability to do both of the following:

6 (i) Use 1 or both legs or feet.

7 (ii) Walk without the use of a wheelchair, walker, crutch,
 8 brace, prosthetic, or other device, or without the assistance of
 9 another ~~person-individual~~.

10 (d) A lung disease from which the ~~person's-individual's~~ forced
 11 expiratory volume for 1 second, when measured by spirometry, is
 12 less than 1 liter, or from which the ~~person's-individual's~~ arterial
 13 oxygen tension is less than 60 mm/hg of room air at rest.

14 (e) A cardiovascular condition that causes the ~~person~~
 15 **individual** to measure between 3 and 4 on the New York ~~heart-Heart~~
 16 **Association functional** classification scale, or that renders the
 17 ~~person-individual~~ incapable of meeting a minimum standard for
 18 cardiovascular health that is established by the American ~~heart~~
 19 ~~association-Heart Association~~ and approved by the department of
 20 ~~public-health~~ **and human services**.

21 (f) An arthritic, neurological, or orthopedic condition that
 22 severely limits the ~~person's-individual's~~ ability to walk.

23 (g) The persistent reliance ~~upon-on~~ an oxygen source other
 24 than ordinary air.

25 Sec. 675. (1) Except as otherwise provided in this section and
 26 this chapter, a vehicle stopped or parked ~~upon-on~~ a highway or
 27 street ~~shall-must~~ be stopped or parked with the wheels of the
 28 vehicle parallel to the roadway and within 12 inches of any curb
 29 existing at the right of the vehicle.



1 (2) A local authority may by ordinance permit parking of a
2 vehicle on a 1-way roadway with the vehicle's left wheels adjacent
3 to and within 12 inches of any curb existing at the left of the
4 vehicle.

5 (3) A local authority may by ordinance permit angle parking on
6 a roadway, except that angle parking is not permitted on a state
7 trunk line highway unless authorized by the state transportation
8 department.

9 (4) The state transportation commission with respect to state
10 trunk line highways and a board of county road commissioners with
11 respect to county roads, acting jointly with the director of the
12 department of state police, may place signs prohibiting or
13 restricting the stopping, standing, or parking of vehicles on a
14 highway where, in the opinion of the officials as determined by an
15 engineering survey, the stopping, standing, or parking is dangerous
16 to those using the highway or where the stopping, standing, or
17 parking of vehicles would unduly interfere with the free movement
18 of traffic on the highway or street. The signs ~~shall~~**must** be
19 official signs and ~~a person~~**an individual** shall not stop, stand, or
20 park a vehicle in violation of the restrictions stated on the
21 signs. The signs ~~shall~~**must** be installed only after a proper
22 traffic order is filed with the county clerk. ~~Upon~~**On** the
23 application to the state transportation commission by a home rule
24 city affected by an order, opportunity ~~shall~~**must** be given to the
25 city for a hearing before the state transportation commission,
26 under the administrative procedures act of 1969, 1969 PA 306, MCL
27 24.201 to 24.328, except ~~when~~**if** an ordinance of the home rule city
28 prohibits or restricts the parking of vehicles on a state trunk
29 line highway; ~~when~~**if** the home rule city, by lawfully authorized



1 official action, requests the state transportation department to
 2 prohibit or restrict parking on a state trunk line highway; or ~~when~~
 3 **if** the home rule city enters into a construction agreement with the
 4 state transportation department providing for the prohibition or
 5 restriction of parking on a state trunk line highway during or
 6 after the period of construction. Traffic control orders ~~, so long~~
 7 ~~as they that~~ affect parking upon a state trunk line highway within
 8 the corporate limits of a home rule city ~~, are~~ considered "rules"
 9 within the meaning of the administrative procedures act of 1969,
 10 1969 PA 306, MCL 24.201 to 24.328, and ~~upon on~~ application for a
 11 hearing by a home rule city, the proceedings before the state
 12 transportation commission ~~shall be~~ **are** considered a "contested
 13 case" within the meaning of that act.

14 (5) A disabled person may apply, on a form prescribed by the
 15 secretary of state, for a serially numbered nontransferable
 16 temporary or permanent windshield placard for the personal use of
 17 the disabled person. **Except as otherwise provided in this**
 18 **subsection, the application must include a medical statement**
 19 **attesting to the disability signed by a medical professional as**
 20 **described in section 19a.** An individual who has a religious
 21 objection to having a medical examination may personally apply at a
 22 branch office of the secretary of state for a serially numbered
 23 nontransferable temporary or permanent windshield placard for the
 24 personal use of the disabled individual. If it appears obvious that
 25 the individual has a qualifying disability, the individual is not
 26 required to present a medical statement attesting to the
 27 disability. The application for and the issuance of the serially
 28 numbered nontransferable temporary or permanent windshield placard
 29 is subject to all of the following:



1 (a) The secretary of state may issue to a disabled person with
2 a temporary disability a temporary windshield placard that is valid
3 for a period of not more than 6 months.

4 (b) The secretary of state may issue to a disabled person with
5 a permanent disability an original or renewal permanent windshield
6 placard that is valid for a period of not more than 4 years.

7 (c) An original or permanent windshield placard expires on the
8 disabled person's fifth birthday after the date of issuance.

9 (d) A renewal permanent windshield placard expires on the
10 disabled person's fourth birthday after the date of renewal.

11 (e) Except as otherwise provided in this subsection, not more
12 than 45 days immediately preceding the expiration of ~~his or her~~ **the**
13 **person's** certificate or placard, a person holding a permanent
14 windshield placard may apply for a new or renewal placard as
15 provided in this section. However, if the person will be out of
16 state during the 45 days immediately preceding expiration of the
17 placard or for other good cause shown cannot apply for a placard
18 within the 45-day period, the person may apply for a new or renewal
19 placard not more than 6 months before the placard expires. A
20 placard issued or renewed under this subdivision expires as
21 provided in this subsection.

22 (f) ~~Upon~~ **On** application in the manner prescribed by the
23 secretary of state for replacement of a lost, stolen, or destroyed
24 placard described in this section, a disabled person or
25 organization that provides specialized services to disabled persons
26 may be issued a placard that in substance duplicates the original
27 certificate or placard for a fee of \$10.00.

28 (g) A placard described in this section may be used by a
29 person other than the disabled person for the sole purpose of



1 transporting the disabled person. An organization that provides
2 specialized services to disabled persons may apply for and receive
3 a permanent windshield placard to be used in any motor vehicle
4 actually transporting a disabled person. If the organization ceases
5 to transport disabled persons, the placard ~~shall~~**must** be returned
6 to the secretary of state for cancellation and destruction.

7 (h) The secretary of state shall not issue a permanent placard
8 to an individual under this section unless that individual has
9 provided proof of Michigan residency.

10 (6) A disabled person with a certificate of identification,
11 windshield placard, special registration plates issued under
12 section 803d, a special registration plate issued under section
13 803f that has a tab for persons with disabilities attached, a
14 certificate of identification or windshield placard from another
15 state, or special registration plates from another state issued for
16 persons with disabilities is entitled to courtesy in the parking of
17 a vehicle. The courtesy ~~shall relieve~~**relieves** the disabled person
18 or the person transporting the disabled person from liability for a
19 violation with respect to parking, other than in violation of this
20 act. A local authority may by ordinance prohibit parking on a
21 street or highway to create a fire lane or to provide for the
22 accommodation of heavy traffic during morning and afternoon rush
23 hours, and the privileges extending to veterans and physically
24 disabled persons under this subsection do not supersede that
25 ordinance.

26 (7) Except as otherwise provided in subsection (20), an
27 application for an initial free parking sticker ~~shall~~**must** contain
28 a certification by a physician, physician assistant, certified
29 nurse practitioner, ~~or~~ physical therapist, **or occupational**



1 **therapist** licensed to practice in this state attesting to the
 2 nature and estimated duration of the applicant's disabling
 3 condition and verifying that the applicant qualifies for a free
 4 parking sticker. An individual who has a religious objection to
 5 having a medical examination may personally apply at a branch
 6 office of the secretary of state for an initial free parking
 7 sticker. If it appears obvious that the individual is unable to do
 8 1 or more of the acts listed in subdivisions (a) to (d), the
 9 individual is not required to present a certification by a
 10 physician, a physician assistant, a certified nurse practitioner,
 11 ~~or a physical therapist,~~ **or an occupational therapist** attesting to
 12 the nature and estimated duration of the applicant's disabling
 13 condition or verifying that the applicant qualifies for a free
 14 parking sticker. The applicant qualifies for a free parking sticker
 15 if the applicant is a licensed driver and the physician, physician
 16 assistant, certified nurse practitioner, ~~or physical therapist,~~ **or**
 17 **occupational therapist** certifies or, if an individual is not
 18 required to have a certification by a physician, a physician
 19 assistant, a certified nurse practitioner, ~~or a physical therapist,~~
 20 **or an occupational therapist,** it is obvious that the applicant is
 21 unable to do 1 or more of the following:

22 (a) Manage, manipulate, or insert coins, or obtain tickets or
 23 tokens in parking meters or ticket machines in parking lots or
 24 parking structures, due to the lack of fine motor control of both
 25 hands.

26 (b) Reach above ~~his or her~~ **the applicant's** head to a height of
 27 42 inches from the ground, due to a lack of finger, hand, or upper
 28 extremity strength or mobility.

29 (c) Approach a parking meter due to ~~his or her~~ **the applicant's**



1 use of a wheelchair or other device.

2 (d) Walk more than 20 feet due to an orthopedic, neurological,
3 cardiovascular, or lung condition in which the degree of
4 debilitation is so severe that it almost completely impedes the
5 ability to walk.

6 (8) To be entitled to free parking in a metered space or in a
7 publicly owned parking structure or area, a vehicle must properly
8 display 1 of the following:

9 (a) A windshield placard bearing a free parking sticker issued
10 under this act.

11 (b) A valid windshield placard issued by another state.

12 (c) A certificate of identification issued by another state.

13 (d) A license plate for persons with disabilities issued by
14 another state.

15 (e) A special registration plate with a tab for persons with
16 disabilities attached issued by another state.

17 (9) A vehicle that does not properly display 1 of the items
18 listed in subsection (8) is not entitled to free parking in a
19 metered parking space or in a publicly owned parking area or
20 structure, and the disabled person or vehicle operator shall pay
21 all parking fees and may be responsible for a civil infraction.

22 (10) Blindness that is not accompanied by an incapacity
23 described in subsection (7) does not entitle a person to a free
24 parking sticker.

25 (11) The secretary of state shall attach a free parking
26 sticker, in contrasting colors, to the windshield placard of a
27 person certified as having an incapacity described in subsection
28 (7).

29 (12) A windshield placard issued under this section ~~shall~~**must**



1 be displayed on the interior rearview mirror of the vehicle or, if
 2 there is no interior rearview mirror, on the lower left corner of
 3 the dashboard while the vehicle is parked or being parked by or
 4 under the direction of a disabled person pursuant to this section.

5 (13) ~~Upon~~**On** conviction of an offense involving a violation of
 6 the special privileges conferred ~~upon~~**on** a holder of a windshield
 7 placard or free parking sticker, a magistrate or judge trying the
 8 case, as a part of any penalty imposed, may confiscate the
 9 windshield placard or free parking sticker and return the
 10 confiscated item or items to the secretary of state together with a
 11 certified copy of the sentence imposed. ~~Upon~~**On** receipt of a
 12 windshield placard or free parking sticker from a judge or
 13 magistrate, the secretary of state shall cancel and destroy the
 14 placard or sticker, and the disabled person to whom it was issued
 15 shall not receive another placard or sticker until ~~he or she~~**the**
 16 **disabled person** submits a completed application and presents a
 17 current medical statement attesting to ~~his or her~~**the disabled**
 18 **person's** condition. A law enforcement officer who observes a misuse
 19 of a windshield placard or free parking sticker may immediately
 20 confiscate the placard or sticker and forward it with a copy of ~~his~~
 21 ~~or her~~**the law enforcement officer's** report to the secretary of
 22 state.

23 (14) ~~A person~~**An individual** who intentionally makes a false
 24 statement of material fact or commits or attempts to commit a
 25 deception or fraud on a medical statement attesting to a
 26 disability, submitted in support of an application for a windshield
 27 placard, free parking sticker, special registration plate, or tab
 28 for persons with disabilities under this section, section 803d, or
 29 section 803f, is guilty of a misdemeanor punishable by a fine of



1 not more than \$500.00 or imprisonment for not more than 30 days, or
2 both.

3 (15) A person who commits or attempts to commit a deception or
4 fraud by 1 or more of the following methods is guilty of a
5 misdemeanor punishable by a fine of not more than \$500.00 or
6 imprisonment for not more than 30 days, or both:

7 (a) Using a windshield placard or free parking sticker issued
8 under this section or by another state to provide transportation to
9 a disabled person, if the person is not providing transportation to
10 a disabled person.

11 (b) Altering, modifying, or selling a windshield placard or
12 free parking sticker issued under this section or by another state.

13 (c) Copying or forging a windshield placard or free parking
14 sticker described in this section or selling a copied or forged
15 placard or sticker described in this section. In the case of a
16 violation of this subdivision, the fine described in this
17 subsection ~~shall~~**must** be not less than \$250.00.

18 (d) Using a copied or forged windshield placard or free
19 parking sticker described in this section.

20 (e) Making a false statement of material fact to obtain or
21 assist an individual in obtaining a placard or sticker described in
22 this section, a special registration plate under section 803d, or a
23 tab for persons with disabilities under section 803f.

24 (f) Knowingly using or displaying a placard or sticker
25 described in this section that has been canceled by the secretary
26 of state.

27 (16) Except as otherwise provided in this section, a person
28 who violates this section is responsible for a civil infraction.

29 (17) The secretary of state may cancel, revoke, or suspend a



1 windshield placard or free parking sticker under any of the
2 following circumstances:

3 (a) The secretary of state determines that a windshield
4 placard or free parking sticker was fraudulently or erroneously
5 issued.

6 (b) The secretary of state determines that ~~a person an~~
7 **individual** has made or is making an unlawful use of ~~his or her the~~
8 **individual's** windshield placard or free parking sticker.

9 (c) The secretary of state determines that a check or draft
10 used to pay the required fee is not paid on its first presentation
11 and is not paid ~~upon on~~ reasonable notice or demand or that the
12 required fee is paid by an invalid credit card.

13 (d) The secretary of state determines that the person is no
14 longer eligible to receive or use a windshield placard or free
15 parking sticker.

16 (e) The secretary of state determines that the owner has
17 committed an offense under this act involving a windshield placard
18 or free parking sticker.

19 (f) A person has violated this act and the secretary of state
20 is authorized under this act to cancel, revoke, or suspend a
21 windshield placard or free parking sticker for that violation.

22 (g) The secretary of state receives notice from another state
23 or foreign country that a windshield placard or free parking
24 sticker issued by the secretary of state has been surrendered by
25 the owner or seized in conformity with the laws of that other state
26 or foreign country or has been improperly used or displayed in
27 violation of the laws of that other state or foreign country.

28 (18) Before a cancellation, revocation, or suspension under
29 subsection (17), the ~~person individual~~ affected by that action



1 ~~shall~~**must** be given notice and an opportunity to be heard.

2 (19) A windshield placard issued to a disabled person ~~shall~~
3 **must** bear the first letter and the last 3 digits of the disabled
4 person's driver or chauffeur's license number or official state
5 personal identification card number.

6 (20) For purposes of this section only, the secretary of state
7 may accept an application for a windshield placard, special
8 registration plate, or free parking sticker from a disabled person
9 that is signed by a physician, physician assistant, certified nurse
10 practitioner, ~~or physical therapist~~, **or occupational therapist**
11 licensed or certified to practice in another state if the
12 application is accompanied by a copy of that physician's, physician
13 assistant's, certified nurse practitioner's, ~~or physical~~
14 therapist's, **or occupational therapist's** current medical license or
15 certification issued by that state.

16 (21) This section does not require new or additional third
17 party reimbursement or worker's compensation benefits for services
18 rendered.

19 ~~(22) As used in this section, "disabled person" means a person~~
20 ~~who is determined by a physician, a physician assistant, a physical~~
21 ~~therapist, or an optometrist as specifically provided in this~~
22 ~~section licensed to practice in this state to have 1 or more of the~~
23 ~~following physical characteristics:~~

24 ~~(a) Blindness as determined by an optometrist, a physician, or~~
25 ~~a physician assistant.~~

26 ~~(b) Inability to walk more than 200 feet without having to~~
27 ~~stop and rest.~~

28 ~~(c) Inability to do both of the following:~~

29 ~~(i) Use 1 or both legs or feet.~~



~~(ii) Walk without the use of a wheelchair, walker, crutch, brace, prosthetic, or other device, or without the assistance of another person.~~

~~(d) A lung disease from which the person's forced expiratory volume for 1 second, when measured by spirometry, is less than 1 liter, or from which the person's arterial oxygen tension is less than 60 mm/hg of room air at rest.~~

~~(e) A cardiovascular condition that causes the person to measure between 3 and 4 on the New York heart classification scale, or that renders the person incapable of meeting a minimum standard for cardiovascular health that is established by the American Heart Association and approved by the department of public health.~~

~~(f) An arthritic, neurological, or orthopedic condition that severely limits the person's ability to walk.~~

~~(g) The persistent reliance upon an oxygen source other than ordinary air.~~

(22) A medical statement attesting to a disability submitted in support of an application for a windshield placard under this section may be made only by a physician, a physician assistant, a certified nurse practitioner, a physical therapist, an occupational therapist, or an optometrist consistent with section 19a.

Sec. 803d. (1) A disabled person may ~~make application~~ **apply** to the secretary of state and the secretary of state may issue special registration plates inscribed with the official international wheelchair symbol or a reasonable facsimile of that symbol and special identification numbers. Vehicles registered under section 801(1)(a) may be issued special registration plates under this section. A vehicle that is used to transport disabled persons may qualify for these distinguishing plates when the registered owner

1 of the vehicle resides at the same address as the disabled person,
 2 submits as part of ~~his or her~~ **the** application for the plates a
 3 statement to the effect that the vehicle is used for that purpose,
 4 and provides the secretary of state with a medical statement
 5 attesting to the fact that the ~~person~~ **individual** being transported
 6 is a disabled person. The fees for the special registration plates
 7 shall correspond with the registration fees provided in section
 8 801(1)(a). Application for the special plates ~~shall~~ **must** be on a
 9 form prescribed by the secretary of state.

10 **(2)** As part of a penalty imposed for violation of the special
 11 privileges conferred by this section, a magistrate or judge may
 12 order the special plates confiscated and returned to the secretary
 13 of state together with a certified copy of the sentence imposed.

14 **(3)** The use of special plates on a vehicle other than the
 15 vehicle for which the plates are issued or by ~~a person~~ **an**
 16 **individual** who does not qualify under this section is a
 17 misdemeanor.

18 ~~(2) As used in this section, "disabled person" means a person~~
 19 ~~who is determined by a physician, a physician assistant, a physical~~
 20 ~~therapist, or an optometrist as specifically provided in this~~
 21 ~~section licensed to practice in this state to have 1 or more of the~~
 22 ~~following physical characteristics:~~

23 ~~(a) Blindness as determined by an optometrist, a physician, or~~
 24 ~~a physician assistant.~~

25 ~~(b) Inability to walk more than 200 feet without having to~~
 26 ~~stop and rest.~~

27 ~~(c) Inability to do both of the following:~~

28 ~~(i) Use 1 or both legs or feet.~~

29 ~~(ii) Walk without the use of a wheelchair, walker, crutch,~~

~~brace, prosthetic, or other device, or without the assistance of another person.~~

~~(d) A lung disease from which the person's forced expiratory volume for 1 second, when measured by spirometry, is less than 1 liter, or from which the person's arterial oxygen tension is less than 60 mm/hg of room air at rest.~~

~~(e) A cardiovascular condition that causes the person to measure between 3 and 4 on the New York heart classification scale, or that renders the person incapable of meeting a minimum standard for cardiovascular health that is established by the American heart association and approved by the department of public health.~~

~~(f) An arthritic, neurological, or orthopedic condition that severely limits the person's ability to walk.~~

~~(g) The persistent reliance upon an oxygen source other than ordinary air.~~

(4) A medical statement attesting to a disability submitted in support of an application under this section may be made only by a physician, a physician assistant, a certified nurse practitioner, a physical therapist, an occupational therapist, or an optometrist consistent with section 19a.

Sec. 803h. (1) The secretary of state may issue a tab for persons with disabilities to a disabled person who is issued or has been issued a Michigan motor vehicle registration plate other than a section 803d registration plate for persons with disabilities. The tab for persons with disabilities ~~shall~~**must** be an adhesive tab displaying the international wheelchair symbol or a reasonable facsimile of that symbol. The use of a tab for persons with disabilities on a registration plate other than the plate for which the tab was issued or by ~~a person~~**an individual** who does not



1 qualify as a disabled person is a misdemeanor.

2 (2) A tab for persons with disabilities ~~shall~~**must** not be used
3 on a registration plate attached to a motor vehicle owned and
4 operated by this state; a state institution; a municipality; a
5 governmental unit; a nonprofit organization; the civil air patrol;
6 or a nonprofit, nonpublic college or university; or on a commercial
7 motor vehicle. A tab for persons with disabilities ~~shall~~**must** not
8 be placed on a registration plate used for intransit-repair or
9 repossession of a motor vehicle.

10 ~~(3) As used in this section, "disabled person" means a person~~
11 ~~who is determined by a physician, a physician assistant, a physical~~
12 ~~therapist, or an optometrist as specifically provided in this~~
13 ~~section licensed to practice in this state to have 1 or more of the~~
14 ~~following physical characteristics:~~

15 ~~(a) Blindness as determined by an optometrist, a physician, or~~
16 ~~a physician assistant.~~

17 ~~(b) Inability to walk more than 200 feet without having to~~
18 ~~stop and rest.~~

19 ~~(c) Inability to do both of the following:~~

20 ~~(i) Use 1 or both legs or feet.~~

21 ~~(ii) Walk without the use of a wheelchair, walker, crutch,~~
22 ~~brace, prosthetic, or other device, or without the assistance of~~
23 ~~another person.~~

24 ~~(d) A lung disease from which the person's forced expiratory~~
25 ~~volume for 1 second, when measured by spirometry, is less than 1~~
26 ~~liter, or from which the person's arterial oxygen tension is less~~
27 ~~than 60 mm/hg of room air at rest.~~

28 ~~(e) A cardiovascular condition that causes the person to~~
29 ~~measure between 3 and 4 on the New York heart classification scale,~~



~~or that renders the person incapable of meeting a minimum standard for cardiovascular health that is established by the American heart association and approved by the department of public health.~~

~~(f) An arthritic, neurological, or orthopedic condition that severely limits the person's ability to walk.~~

~~(g) The persistent reliance upon an oxygen source other than ordinary air.~~

(3) A medical statement attesting to a disability submitted in support of an application under this section may be made only by a physician, a physician assistant, a certified nurse practitioner, a physical therapist, an occupational therapist, or an optometrist consistent with section 19a.